

PLJ 2017 Lahore 227

[Multan Bench Multan]

Present: MASUD ABID NAQVI, J.

MUHAMMAD RAMZAN--Petitioner

versus

ADDL. DISTRICT JUDGE, etc.--Respondents

W.P. No. 5602 of 2010, decided on 7.12.2016.

Specific Relief Act, 1877 (I of 1877)--

---S. 9--Constitution of Pakistan, 1973, Art. 199--Constitutional petition--
Suit for possession--Shamilat deh--Dispossessed illegally and unlawfully--
-Validity--It is well settled proposition of law that Section 9 of Specific
Relief Act, is entirely a different kind of action because it gives a special
privilege to persons in possession to take action promptly on their
dispossession of immovable property and dispossessed persons are
entitled to succeed simply by proving that they were in possession and
had been dispossessed without due course of law and dispossession had
taken place within six months of suit without raising or discussing
question of title either of plaintiffs or defendants. [P. 228] A

Mehr Abdul Ghaffoor, Advocate for Petitioner.

Mian Muhammad Jamal, Advocate for Respondents.

*M/s. Muhammad Riaz Jahanian, Ch. Habib Ullah Nahang and Syed
Tajamal Hussain Bokhari*, Advocates for Respondents No. 3 to 5.

Date of hearing: 7.12.2016.

ORDER

Brief facts of this petition are that respondents/plaintiffs filed a suit for possession under Section 9 of Specific Relief Act with the averments that plaintiffs are owner in possession of the agricultural land and suit property is as Shamilat Deh while defendants have no concern whatsoever with the suit property while defendants interfered into their possession and they filed suit for permanent injunction and stay order was issued by the learned Court but despite of stay order of the Court, defendants destroyed the crop of plaintiffs. It was further added that defendants dispossessed the plaintiffs illegally and unlawfully and in this connection case FIR No. 219 dated 12.06.2008 was registered. Hence, the suit. The defendants contested the suit by filing the written statement wherein they raised legal and factual points and specifically denied the execution of exchange deed. Out of divergent pleadings of the parties, issues were framed by the learned trial Court. The parties produced their respective evidence and after recording the same, learned trial Court *vide* judgment and decree dated 24.11.2009 decreed the suit of the plaintiffs/respondents. Feeling aggrieved, one of the 07 defendants i.e. Defendant No. 1 filed revision petition and the learned Additional District

Judge *vide* judgment & decree dated; 06.05.2010 dismissed the same. Being dissatisfied, the petitioner/Defendant No. 1 has filed the instant revision petition and challenged the validity of the judgments and decrees passed by the learned Courts below.

2. I have heard the arguments of learned counsel for the parties who reiterated their respective arguments and perused the available record as well as have minutely gone through the impugned judgments and decrees.

3. It is well settled proposition of law that Section 9 of the Specific Relief Act, 1877 is entirely a different kind of action because it gives a special privilege to persons in possession to take action promptly on their dispossession of immovable property and the dispossessed persons are entitled to succeed simply by proving that they were in possession and had been dispossessed by the defendants without due course of law and the dispossession had taken place within six months of the suit without raising or discussing the question of title either of the plaintiffs or defendants. Onus to prove the Issues No. 5 and 6 was on the plaintiffs which are the main and vital issues. Mian Mohammad Kamal/one of the plaintiffs appeared and deposed as PW-1. He categorically deposed that the plaintiffs are the real brothers and were in possession of the suit property for the last 50 years but they were dispossessed from the suit property. Abdul Majeed/PW-2/tenant of the plaintiffs also supported the version of the plaintiffs. Both the PWs were subjected to cross-examination but there exist no substantial variations/contradictions in the deposition of- PWs. The plaintiffs exhibited documentary evidence i.e. Ex.P-1 to Ex.P-8 to prove their case of possession and dispossession. Hence, the plaintiffs/respondents proved their possession of suit land and thereafter dispossession by the defendants through oral and documentary evidence.

On the other hand, in cross-examination, Mohammad Ramzan/DW-1 frankly conceded the possession of plaintiffs and their possession with undermentioned these words:

یہ درست ہے کہ فصل کے اجاڑے اور قبضہ کی بابت میاں کمال مدعیان نے میرے خلاف مقدمہ نمبر 219/08 تھانہ صدر میلسی میں درج کروایا تھا میں مقدمہ 219/08 میں شامل تفتیش ہوا تھا میں گرائم پرائج ملتان میں بھی شامل تفتیش ہوا تھا میں تفتیش کے دوران یہ بیان نہ دیا تھا کہ میں نے اجاڑہ نہ کیا تھا البتہ سرکاری زمین پر قبضہ کیا ہے میں نے 4.06.08 کو قبضہ کے بعد درستی کاشت کی درخواست دی تھی رقبہ مدعوہ کی وارہ بندی مدعیان کے نام غلط بنی ہوئی ہے مجھے علم نہ ہے کہ وارہ بندی سابقہ پندرہ بیس سال سے مدعیان کے نام ہے۔

By minutely perusing the contents of pleadings, oral evidence of PWs/DWs as well as documentary evidence, then remains no doubt that the plaintiffs were in possession of suit land but were dispossessed by the defendants on 04.06.2008 as conceded by petitioner himself as PW-1 and the plaintiffs took prompt action by filing instant suit on 27.11.2008 i.e. within six month of dispossession.

4. Even otherwise,; with respect to interference in concurrent findings of the Courts below, the Hon'ble Supreme Court of Pakistan in a case reported as *Mst. Farhat Jabeen vs. Muhammad Safdar and others* (2011 SCMR 1073) has held that:

“It is settled rule by now that interference in the findings of facts concurrently arrived at by the Courts should not be lightly made, merely for the reason that another conclusion shall be possibly drawn, on the reappraisal of the evidence; rather interference is restricted to ‘the cases of misreading and non-reading of material evidence which has bearing on the fate of the case.’”

5. In the present case, no such defects have been pointed out by the learned counsel for petitioner in order to seek interference by this Court. Learned Courts below have meticulously examined the entire evidence of the parties and thereafter reached at the conclusion

regarding the controversy. Neither any misreading or non-reading of evidence on record nor any infirmity, legal or factual, has been pointed out in the impugned judgments and decrees passed by the learned Court below, therefore, this petition is dismissed.

(R.A.)

Petition dismissed.